AIESEC in India

Incoming Global Volunteer

Recruitment Services & **Engagement Agreement**

Last Updated May 2025

RECRUITMENT SERVICES & ENGAGEMENT AGREEMENT

This Recruitment Services and Engagement Agreement (the "**Agreement**"), made and executed at [Manipal Academy of Higher Education] on [02] [02] [2026] **between:**

Association Internationale des Étudiants en sciences Economiques et Commerciales, a youth running organization "**AIESEC in [M.A.H.E.]**" having its local office address at Room no. 203B, Innovation center, Manipal Institute of Technology, Manipal - 576104 Karnataka, India (hereinafter referred to as "**AIESEC**", which expression shall, unless repugnant to the meaning or context thereof, be deemed to include its successors, affiliates and permitted assigns);

And

Manipal Academy of Higher Education**,** an organisation incorporated under the laws of India having its registered office address Manipal.edu, Madhav Nagar, Manipal, Karnataka, 576104 through (**Dr. Vivek Pandi**) at duly authorised vide board resolution dated **2nd February 2026**(hereinafter referred to as the "**Organization**", which expression shall, unless repugnant to the meaning or context thereof, be deemed to include its successors, affiliates and permitted assigns).

The Organization and AIESEC are hereinafter individually referred to as "Party" and jointly as "Parties".

WHEREAS:

A. The Organization is inter alia engaged in [**education and research**]**.**

B. AIESEC is the world's largest youth-run organization which provides a platform for youth leadership development, international internship, and provides a global learning environment.

C. The Organization as a [Education and Research University] is desirous of seeking the services of AIESEC to find prospective volunteers and AIESEC has agreed and is willing to assist the Organization for the same.

D. Volunteer is referred to as "Exchange Participant" or "EP", which expression shall, unless repugnant to the meaning or context thereof, be deemed to include its successors, affiliates, and permitted assignments.

NOW THEREFORE THIS AGREEMENT WITNESSED that in consideration of the good and valuable consideration mentioned hereinafter, the receipt and sufficiency whereof is hereby acknowledged, the terms and conditions agreed by the Parties as follows:

1. **COMMITMENT OF AIESEC:** AIESEC is committed to provide the following services to the Organization:

   1.1. Promoting the internship offer(s) by the Organization and finding a qualified candidate for the position offered by the Organization from its pool of candidates.

   1.2. Collecting resumes from various sources, by way of their internal databases, industry contacts, and advertising, screening the prospective candidate profile(s) who match the requirements detailed in the job description specified in the Volunteer Questionnaire. It is agreed between the Parties that AIESEC shall select EPs intending to intern for a period of

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6 (six) weeks with the Organization.

1.3. Contacting the candidates on behalf of the Organization and conducting a personal/telephonic interview(s), within 2 days from the date of shortlisting or such date and time as may be mutually acceptable to the candidate.

1.4. Providing the Organization with the necessary information about the selected candidates in a timely manner.

1.5. Assisting the selected EP to complete the VISA formalities by providing all VISA-related information.

1.6. Providing support to the EP to integrate him/her into the local environment including but not limited to arrangements for Pick up from the airport, accommodation, accompanying on the first day of work, travel, integration events.

1.7. Evaluating the EP and internship experience.

2. **COMMITMENT OF THE ORGANIZATION:** In accepting to take an Exchange Participant through AIESEC, the Organization is committing to**:**

2.1. Engage the services of AIESEC to assist the Organization in sourcing and introducing international human resources as prospective EP for an internship within the Organization.

2.2. Provide AIESEC with the parameters and/or the job descriptions in writing for the positions for which the Organization intends to recruit volunteers.

2.3. Respond within 48 working hours, to requests of AIESEC for information and to other communications from AIESEC.

2.4. Deliver development spaces to add to the development of the EP(s) in the first and last week of the EP's arrival.

3. **EXCHANGE PRODUCT AND LIABILITIES**

This "RECRUITMENT SERVICES & ENGAGEMENT AGREEMENT", is considered a formal contract and commitment between AIESEC and the organization stated on this form. All parties should keep an original copy with signatures of the organization and AIESEC. Any changes made after signing this contract should be re-signed by both parties or a new contract should be completed.

3.1. **Aim of the Exchange Product**

3.1.1. **The Exchange Product must aim to provide the EP with:**

3.1.1.1. A positive learning experience;

3.1.1.2. Interaction with a different social and cultural environment with a view to gaining intercultural competencies;

3.1.1.3. Development of theoretical and practical leadership skills;

3.1.1.4. Opportunity to apply personal and professional skills, knowledge, attitudes, and values to work for the organization as well as the host communities;

3.1.1.5. Develop awareness and knowledge of social issues and different practices of the sending and hosting country;

3.1.1.6. Opportunity to contribute to personal and professional life goals.

3.1.2. **The Exchange Product cannot aim to:**

3.1.2.1. Solely provide an opportunity for the EP to earn money;

3.1.2.2. Provide a holiday;

3.1.2.3. Act as a permanent career placement or recruitment opportunity. If the organization decides to extend the program on a permanent basis, AIESEC will have no role in facilitating this;

3.1.2.4. Provide permanent residence in the hosting country;

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3.1.2.5. Be an internal AIESEC leadership position (such as MC/AI/CEED).

3.2. **Understanding of the AIESEC Exchange Product Policies**

This Recruitment Services and Engagement Agreement is aligned to the **AIESEC Exchange Product Policies (AEPP)**, the official legislated document within the International Compendium of AIESEC global association. If any conflict appears between this contract and the AEPP, it is always to follow the statement within the AEPP. The signing AIESEC entity is responsible for providing the relevant document to the organization.

By signing this contract, both parties agree and commit to all the terms and conditions of the Exchange Product Policies, including the responsibility in the delivery of the Exchange Products.

3.3. **Conditions**

In the first instance, all disagreements and arguments concerning the agreement or its realization must be addressed by way of negotiation, directly between the parties mentioned in this agreement.

4. AGREEMENT

In the first instance, all disagreements and arguments concerning the agreement or its realization must be addressed by way of negotiation, directly between the parties mentioned in this agreement. **THE PARTIES HEREBY AGREES:**

4.1. Term

The date of this Contract shall commence upon the satisfactory conclusion of the Opportunity auditing procedure; which shall be within 5 days of this Contract being signed.

4.2. **Obligations of AIESEC and AIESEC Service and Administration Fees:** AIESEC is committed to provide the following services:

4.2.1. Promoting the internship offer(s) by the Organization and finding a qualified candidate for the position offered by the Organization from its pool of candidates.

4.2.2. Collecting resumes from various sources, by way of their internal databases, industry contacts, and advertising, screening the prospective candidate profile(s) who match the requirements detailed in the job description specified in the Volunteer Questionnaire. It is agreed between the Parties that AIESEC shall select EPs intending to intern for a period of 6 (six) weeks with the Organization.

4.2.3. Contacting the candidates on behalf of the Organization and conducting a personal/telephonic interview/s, within 2 days from the date of shortlisting or such date and time as may be mutually acceptable to the candidate.

4.2.4. Providing the Organization with the necessary information about the selected candidates in a timely manner.

4.2.5. Assisting the selected EP to complete the VISA formalities by providing all VISA-related information.

4.2.6. Providing support to the EP to integrate him/her into the local environment including but not limited to arrangements for Pick up from the airport, accommodation, accompanying on the first day of work, travel, integration events.

4.2.7. Evaluating the EP and internship experience.

4.3. AIESEC will charge the Organization an amount of **INR 0 per position** for providing the above scope of services as the "Recruitment Fee". Any additional service not listed above shall be subject to an additional fee, and the additional fee and services shall be subject to the agreement between the Organization and AIESEC prior to the commencement of the additional service and with

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reasonable notice in advance.

4.4. A deposit of **INR 0 per** position is payable upon presentation of our first invoice when the Organisation agrees to sign the Contract & Volunteer Questionnaire. The remaining Recruitment Fee amount is payable upon our second invoice issued when the EP has commenced working in the Organisation. Properly submitted invoice upon which payment is not received within thirty (30) days from the date of the invoice shall accrue a late charge of 5% per month, in each case compounded monthly. AIESEC shall have the right to halt or terminate entirely its services until payment is received on a past due invoice.

4.5. In the event that AIESEC is unable to provide suitable EP(s) till the date agreed in the Volunteer Questionnaire, and the Organization withdraws from the contract, the Organization will be entitled to a refund of **the entire Recruitment Fee** for the position(s).

4.6. In the event that the Exchange Participant selected by AIESEC has accepted the position offer and the Organization withdraws from the contract, the Organization shall be liable for **the entire Recruitment Fee per Position** to cover the cost incurred by AIESEC to that point.

4.7. In the event that the Organization withdraws from the Contract after the Visa application for the selected Exchange Participant has been submitted by AIESEC, the Organization shall be liable for the entire Recruitment Fee per position. The Organization shall be liable for the traveling expenses of the Exchange Participant incurred upon the request of the Exchange Participant.

4.8. In the event that the Organization withdraws from the Contract after the Exchange Participant starts working in the organization; and ONLY under the circumstances where:

4.8.1. The Exchange Participant is breaking the law; or

4.8.2. The Exchange Participants continuously breaking the internal regulation of the Organisation; or

4.8.3. The Exchange Participants falsified qualifications related to his academic background, work experience, or language ability

The Organization, upon request, will be entitled to a compensation of **50%** of the Recruitment Fee from the Exchange Participant. AIESEC, upon request, is liable for presenting a substitute Exchange Participant who matches the requirements as detailed in the Volunteer Questionnaire. In the event that no other suitable candidates can be presented, the Organization can request to have the other 50% of the Recruitment Fee refunded.

4.9. In the event that the Organization withdraws from the Contract under any condition other than conditions stated in 4.7, and

4.9.1. If the Exchange Participant has only worked in the organization for 3 or less than 3 weeks, upon request AIESEC is liable to select suitable candidate(s) for substitution within the first 2 months of EP's contract termination who match the requirements as detailed in the Volunteer Questionnaire for the purpose of replacing the Exchange Participant for the first time; Otherwise, the Organisation will be entitled to a refund of **50%** of the Recruitment Fee per position from AIESEC; or

4.9.2. If the Exchange Participant has been working in the Organization for more than 3 weeks or the Exchange Participant is a substitute for the position, AIESEC is not liable for replacing the Exchange Participant with another candidate and the Organization will not be entitled to a refund of any description.

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4.10. **Obligations of the Organization**

4.10.1. The Organization is committed to responding quickly to requests for information and to other communications from AIESEC.

4.10.2. The Organization agrees to provide AIESEC with information and document of the Organization within 10 working days starting from the first contact date for the visa application and processing to be completed before the Internship start date, including but not limited to:

4.10.2.1. Organization Registration Certificate;

4.10.2.2. Audited Financial Report;

4.10.2.3. Completed Visa Application ID 992 (B);

4.10.2.4. Signed Visa Application Undertaking Letter and Supporting Letters;

4.10.2.5. Working Schedule/ Calendar of the Exchange Participant.

4.10.3. The Organization agrees to provide AIESEC any other information and documents necessary for dealing with the internship affairs AIESEC deemed necessary.

4.10.4. The Organization agrees to provide at least one space to align the Job Description with Exchange Participant personal goals on the first day of the work and one space to debrief on the last day of the work.

4.10.5. THE ORGANIZATION commits to provide the volunteers during the time (4/6/8 weeks) of development of the project with food supplies from Monday to Friday, work materials, and lodging (in case an agreement has been reached).

4.10.6. Period of exchane to be performed between the dates 02/02/2026 to 02/02/2027.

4.11. Obligation towards opportunities/volunteers:

4.11.1 Opening of 100 (One Hundred) vacancies for the incoming volunteer program by the NGO under the conditions set forth in this contract:
( ) heartbeat ( ) explorer ( ) happy bus( ) fingerprint ( ) global classroom ( ) youth 4 impact ( ) raise your voice (100)skill up! ( ) on the map ( ) equify ( ) eco city ( ) eat 4 change ( ) green leaders( ) aquatica ( ) rooted ( ) myself, my world ( )scale up

4.11.2. Number of vacancies 100 (One Hundred) weeks (respecting the margin of 6 weeks).

4.11.3. Period of performance to be performed between the dates 02/02/2026 to 02/02/2027.

4.11.4. Description of the role:

4.11.4.1. Main activities and lessons learned for the exchange participant

Skill Up!-The project aims to impact SDG #8 by providing young people with soft and hard skills training, needed to qualify for a decent job, and career guidance.

4.11.4.2. Days the participant will work

(Yes) Monday
(Yes) Tuesday
(Yes) Wednesday
(Yes) Thursday
(Yes) Friday
(No) Saturday
(No) Sunday

4.11.4.3. When do the working hours start and end? If there are any breaks, please mention them.

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Working hours: 0900H to 1700H; and break from 1230H to 1400H.

4.11.5. Benefits

4.11.5.1.Lodging provided: (.) Yes( ) No
4.11.5.2. Lodging covered: (.) Yes( ) No
4.11.5.3. Transportation provided: ( ) Yes(.) No
4.11.5.4. Transportation covered: ( ) Yes(.) No
4.11.5.5. Computer provided: ( ) Yes( ) Yes(.) No

4.12. Termination of the Contract by the Exchange Participant:

4.12.1 In the event that Exchange Participant withdraws from the Contract were

4.12.1.1. The position provided by the Organization is seriously deviated from the job description specified in the Volunteer Questionnaire; or
4.12.1.2. The Organization is not providing the Exchange Participants with the resources stated in this Contract without a further formal agreement with the Exchange Participant; or
4.12.1.3. He/she is discriminated by color, race, sex, or age at his/her workplace; or
4.12.1.4. He/she is sexually harassed at his/her workplace; or
4.12.1.5. The Organization has committed any other offenses against the Employment Law in India.

AIESEC is not liable for replacing the Exchange Participant with another candidate and the Organization will not be entitled to a refund of any description. The Organization is responsible for the expenses (which shall cover the accommodation, food, and transportation expenses within India) during the Exchange Participant's stay in India for 30 days, counting from the date where the Exchange Participant withdraws from the Contract. The Organization is also responsible for the Exchange Participant's travel expenses back to his/her country upon the request of the Exchange Participant;

4.12.2. In the event that Exchange Participant withdraws from the Contract within the first 3 weeks of working when,
4.12.2.1. The Exchange Participant having an emergency in his/her family, which proof of the emergency is provided; or
4.12.2.2. The Exchange Participant becomes ill and can be dangerous for his/her health, with proof from a medical professional is provided; or
4.12.2.3. The Exchange Participant in danger due to a formally declared emergency, such as war, natural disasters, terrorism attacks, etc.

The Exchange Participant is not liable to pay any compensation and he/she will be liable for his/her own traveling expenses. AIESEC will be liable to provide a substitute Exchange Participant who match the requirements detailed in the Volunteer Questionnaire upon the request from the Organization;

4.12.3. In the event that the Exchange Participant withdraws from the Contract at any point before the Exchange Participant starts working in the Organisation, AIESEC is liable for present a substitute Exchange Participant who matches the requirements detailed in the Volunteer Questionnaire upon the request from the Organization; Otherwise, the Organization will be entitled to a refund of the 50% amount of the Recruitment Fee paid per position.

4.13. The Organization also agrees to:

4.13.1. Provide each selected EP(s) with accommodation(provided and covered) and food(3 meals provided not covered) for the entire duration of the internship. AIESEC shall provide assistance in finding suitable accommodation, upon request, given that the organisation shall

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bear the entire expense of the accommodation.

4.13.2. In case of preliminary termination of the contract, the Organisation will intimate AIESEC at least 28 days prior to the realisation date. (starting date of the internship). Similarly, in case the internship duration is desired to be lengthened by the Organisation post the arrival of the intern; the Organisation must inform AIESEC at least 14 days prior to the termination of the original duration, in written format.

4.13.3. Ensure the safety and well-being of the EP including but not limited to protection against sexual harassment at the workplace. The Organisation confirms that it has a detailed policy against sexual harassment and the same shall cover the EP at the organisation.

4.13.4. Provide adequate working conditions, orientation, guidance, and training for the EP to achieve the objectives agreed upon.

4.13.5. Give AIESEC feedback on the quality of the service they are providing (prior to, during, and after the Internship) so they can continuously improve and enhance their services.

4.13.6. Honor the terms and conditions of this contract and maintain a healthy relationship with AIESEC.

4.13.7. In the event, the performance of the EP is unsatisfactory, the Organisation shall provide a written explanation to the EP and AIESEC outlining the areas requiring improvement and shall provide at least 15 days for the EP to improve on such areas. In the event there is no improvement, the Organisation may at its sole discretion remove such EP after taking such advice and consideration from AIESEC. However, in any event, the Organisation fails to provide such explanation; it shall be liable to pay for the flight tickets of the EP and any other charges ancillary to such travel. AIESEC shall not be liable to the Organisation in any manner whatsoever for the unsatisfactory performance of the intern.

4.13.8. Ensure that the Volunteer Questionnaire provided, in the beginning, is followed throughout the period of the internship. Any changes in the Job Description without the consent of the EP shall make the Organisation liable to refund the ticket amount of the EP and allow him/her to return, in case of any dispute.

4.13.9. In the event, that the Organisation recruits an introduced EP for themselves or for any other group organization/company/associate or contractor/subcontractor or for some other position altogether, at a later date, within 1 (one year) from the date of their last interview, then such an EP shall be considered as a person recruited through AIESEC and the Organisation would be liable to make payment to AIESEC.

5. TERM & TERMINATION

This Agreement shall be effective from 2nd February 2026 and shall remain in force till 2nd February 2027. However, the term of the agreement may be extended for such a period as agreed between both the Parties in writing.

5.1. Either Party shall have the right to terminate this Agreement with immediate effect, if:

5.1.1. The other Party fails to perform any material obligations under this Agreement, and such failure continues unheeded for a period of thirty (30) days following receipt of written notice of such failure, or

5.1.2. The other Party should enter into liquidation, either voluntary or compulsory, or become Insolvent, or enter into a composition or corporate reorganization proceedings or if execution is levied on any goods and effects of the other party or the other party should enter into receivership or bankruptcy.

5.2. Either Party may terminate the agreement at will upon giving not less than 28 days prior written notice to the other party.

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5.3. Obligations of the Parties relating to confidentiality, indemnity, and intellectual property rights as contained in this Agreement shall survive the expiration or termination of the Agreement.

5.4. In the event of termination, the Parties shall render a final account to the other of all outstanding actual amounts and the net outstanding shall be paid within fifteen days of the rendering of the account

6. REMUNERATION TO AIESEC

6.1. The Organization shall pay the following fee to AIESEC per position which is mentioned in Clause no. 4.3. & Clause no. 4.4., as and what is required from the same clauses in Cheque.

6.2. The process of getting the candidates will not start until the initial payment is made by the Organization.

6.3. An invoice will be sent a week in advance of the same.

6.4. In case TDS is charged by the Organization, a 16(A)-certificate stating the same must be provided to AIESEC along with the cheque.

6.5. All cheques/Demand drafts must be drawn in Favor of "**[MANIPAL ACADEMY OF HIGHER EDUCATION]**". Post-dated cheques for a date within the due limit shall be accepted

6.6. All Bank Transfers must be done to the following account:

Account Name: MANIPAL ACADEMY OF HIGHER EDUCATION
Account Number:15721450000019
IFSC Code: HDFC0001572
Branch Name: MANIPAL EDU BUILDING, MADHAVNAGAR, MANIPAL, 576104,KARNATAKA

6.7. The aforesaid fee shall be refunded to the Organisation only if AIESEC is not able to provide a single relevant resume of a candidate as per the requirements of the Organisation within 3 months from the date of requisition.

7. EXCHANGE PARTICIPANT DELIVERABLES

7.1. To have sufficient funds to incur all their expenses related to transportation to and from the country or territory.

7.2. To officially register with the home embassy in the country or territory of the exchange if their home country or territory requires it, within one (1) week of their arrival.

7.3. To always act in accordance to national or local law and other policies that exist in the country or territory of exchange.

7.4. To attend the Incoming Preparation Seminar (IPS) as part of the AIESEC Exchange Standards, organized by the AIESEC Host Entity (HE) and ensure to do all preparation and satisfy all the requirements needed for the country or territory where the exchange is taking place.

7.5. To inform the AIESEC SE and AIESEC HE about their departure from the country or territory of the exchange at least two (2) weeks in advance, in a written format, about their travel details.

7.6. To comply with the country or territory of exchange migration laws for their departure, and inform themselves about them in advance, by research and confirmation with the AIESEC HE.

7.7. Check and take the Standards Completion survey on the AIESEC platform to assess the exchange delivery at different stages of the experience.

7.8. Fulfil the agreed working hours and responsibilities defined in their Job Description.

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7.9.Maintain communication with the Sending & Hosting Local Committees throughout the internship/volunteering period.

7.10. EP must stick to the duration of the exchange stated on the opportunity.

8. REPRESENTATION AND WARRANTIES

Both Parties represent and warrant to each other that:

8.1. They are establishment duly and legally organized and validly existing in India and that the responsibilities assumed under this Agreement are legally valid and binding obligations on them and enforceable against them;

8.2. They shall comply with or cause to comply with all legal and valid provisions of statute, law, bye-law, rules, regulations, or provisions having the force of the law of the central and/or state governments, municipal corporation, municipality, local body, or public authority, order of courts or law, and/or revenue or tax authority in so far as the same relates to the part of their obligations/responsibilities mentioned herein and shall keep each other duly indemnified against any non-compliance or breach thereof and all losses, damages, that may be suffered and costs that may be incurred by another party. Without limiting each other's rights and remedies, each party shall indemnify and keep indemnified on demand and hold harmless the other party for any loss suffered or costs incurred by the other party as a result of a breach of the warranty set out in this clause.

8.3. They are entitled to execute and implement this Agreement in accordance with their terms and all the requisite regulatory and corporate approvals, as applicable have been obtained by them prior to the execution of this Agreement;

8.4. They are qualified and competent to perform the services covered under this Agreement; and

8.5. Their performance of their obligations as per this Agreement does not and shall not violate or conflict in any manner with any of their duty or obligation with any third party.

9. INDEPENDENT PARTIES

It is the express intention of the Parties to this Agreement that AIESEC is an independent contractor. AIESEC is not an employee, agent, joint venture, or partner of the Organisation. Nothing in this Agreement shall be interpreted or construed as creating or establishing an employment relationship between the Organisation and AIESEC. The Parties hereto understand and agree that the AIESEC may perform services for others during the term of this Agreement.

10. INTELLECTUAL PROPERTY RIGHTS

Each Party shall retain all right, title, and interest in its patents, copyrights, trademarks, proprietary and/or licensed software, service marks, and trade secrets ("**Intellectual Property Rights**"). No interest whatsoever in the other Party's Intellectual Property Rights is granted by this Agreement and use of any Intellectual Property Rights permitted to one Party by the other Party shall be strictly in terms of this Agreement. The Parties shall not license, sell, publish, disclose, display or otherwise make available the Intellectual Property Rights of the other Party to any person or entity except as provided in this Agreement. To the fullest extent permissible by applicable law or regulations, Parties agree that they shall not, nor shall they allow others to, reverse engineer or disassemble any parts of the other party's Intellectual Property Rights. Neither Party shall use the Intellectual Property of the other Party in any manner whatsoever without the prior consent of the other Party or as provided hereunder.

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The provisions of this Clause shall survive the termination of this Agreement.

11. CONFIDENTIALITY

11.1. In connection with this Agreement, the Parties may exchange certain confidential information: Explanation: For the purpose of this Agreement, the term "**Confidential Information**" means all oral or written information that is not generally known and that receiving party obtained in the performance of its service/duties in relation to the disclosing party. The term "**Confidential Information**" shall include, but shall not be limited to, classified information, inventions, discoveries, know-how, ideas, computer programs, designs, algorithms, processes and structures, product information, research and development information, lists of clients, and other information relating thereto, financial data and information, business plans and processes, and any other information that disclosing party may inform to receiving party, or that receiving party should know by virtue of its position or the circumstances in which it learned it, is to be kept confidential. Confidential Information also includes information obtained by the receiving party in confidence from third parties, including, but not limited to, its subcontractors, consultants, or clients and any other information of a private, confidential or secret nature concerning the disclosing party whether or not relating to the business of the disclosing party.

11.2. Each Party agrees that during the term of this Agreement it shall: (i) only disclose Confidential Information to those of its employees, officers, directors agents and contractors (collectively "**Representatives**") with a need to know, provided, the receiving party ensures that such Representatives are aware of and comply with the obligations of confidentiality prior to such disclosure; (ii) not disclose any Confidential Information to any third party without the prior written consent of the disclosing party; (iii) not reproduce Confidential Information in any form except as required to perform its obligations under this Agreement; (iv) not publish, reverse engineer, decompile or disassemble any Confidential Information disclosed by the other party; (v) not directly or indirectly export or transmit any Confidential Information to any country to which such export or transmission is restricted by regulation or statute; and (vi) promptly provide the other Party with notice of any actual or threatened breach of this clause.

11.3.The provisions of above clause 10.2 shall not apply to:

11.3.1. disclosure of Confidential Information that is or becomes generally available to the public other than as a result of disclosure by or at the direction of a Party or any of its Representatives in violation of this Agreement; or

11.3.2. disclosure, after giving prior written notice to the other Party to the extent practicable under the circumstances and subject to any practical arrangements to protect the confidentiality, to the extent required under the rules of any stock exchange or by applicable laws, regulations or processes of any government authority or in connection with any judicial process regarding any legal action, suit or proceeding arising out of or relating to this Agreement.

11.4. All Confidential Information (including copies thereof) shall remain the property of the disclosing party and shall be returned (or, at the disclosing party's option, certified as destroyed) upon written request or upon the receiving party's need for it had expired and, in any event, upon expiration or termination of this Agreement. Both Parties agree that they shall within ten (10) days of written notification return or destroy all documents and tangible items in their possession, which contain any Confidential Information and, if requested, provide a certificate of destruction if such Confidential Information is destroyed.

12. INDEMNITY

Defaulting Party shall indemnify the affected Party and their directors, officers, employees, agents, and associates against any loss, damage, claim, action or expense (including, without

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limitation, legal expense) which the affected party or any of their directors, officers, employees, agents, and associates suffer as a direct or indirect result of any of the following: Any breach of any term of this Agreement by defaulting Party;

12.1.1. Any warranty given by defaulting Party under this Agreement being incorrect or misleading in any way;

12.1.2. Any negligent act or failure to act by defaulting Party or any of defaulting Party's employees, agents, officers, or contractors

12.1.3. all actions, proceedings, claims, demands, or prosecutions which may be brought, commenced or instituted against affected Party for the damages, or loss or accident caused to any third party during the continuance of this Agreement and also against all costs, damages, and expenses which defaulting Party may in any way pay or incur in defending or settling the same in consequence thereof

12.1.4. consequences arising out of a defaulting party or its representatives, default or negligence or non-adherence to Municipal/ State/ Central Act, Rules, Regulations, Orders or Direction issued from time to time relating to the transaction contemplated herein. Should the affected Party be held liable for any loss, damages, or compensation to third parties arising out of or in relation to business transactions carried on by the defaulting Party together with the cost incurred on any legal proceeding pertaining thereto.

12.1.5. any claim for all employee-related liabilities viz. ESIC/Bonus/PF etc. that may be raised on the affected Party by any employee of/or appointed by the defaulting Party or any Government agencies under the relevant statutes during the subsistence of this Agreement.

If an indemnity payment is made under this clause, the defaulting Party must also pay the affected party an additional amount equal to any tax which is payable by the recipient in respect of that indemnity payment.

13. NOTICES

Any communication or document to be made or delivered by one party to the other pursuant to this Agreement shall be in English (unless that other party has by 15 days written notice to the other party specified change in address) be made or delivered to that other party at the address identified with his description at the signing of the Agreement and shall be deemed to have been made or delivered three business days from the date of the communication. It is clarified that any service by way of facsimile transmission alone will not amount to a valid service unless sent by Registered A/D and/or Courier as well.

14. DISPUTE RESOLUTION

14.1. Negotiation

Any dispute, difference, controversy, or claim among the Parties (each a "**Disputing Party**" and together with the "**Disputing Parties**") arising out of or relating to this Agreement or the breach, termination or validity thereof ("**Dispute**") shall, upon the written request ("**Request**") of either Disputing Party is referred to the authorised representatives of the Disputing Parties for resolution. The authorised representatives shall promptly meet and attempt to negotiate in good faith a resolution of the Dispute. In the event that the Disputing Parties are unable to resolve the Dispute through negotiation within 30 (thirty) days after service by a Disputing Party of a Request, then the Dispute shall be resolved in accordance with the provisions of Clause below.

14.2. Arbitration tribunal

In the event that the Parties are unable to resolve a Dispute as provided in Clause above,

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Manipal - 576 104

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the Dispute shall be finally settled under the Indian Arbitration and Conciliation Act, 1996 as amended from time to time (the "**Rules**") by a sole arbitrator appointed in accordance with the Rules.

14.3. Place, enforcement and proper law of the arbitration

14.3.1. The place of arbitration shall be Mumbai and all the arbitration proceedings shall be conducted in the English language.

14.3.2. Judgment upon any arbitral award rendered hereunder may be entered in any court having jurisdiction, or application may be made to such court for a judicial acceptance of the award and an order of enforcement, as the case may be.

14.3.3. The proper law of the arbitration shall be Indian law and the award will be made under the laws of India.

15. DATA PROTECTION

15.1. The Organisation agrees to keep the personal data of the candidate given by AIESEC only for the purposes of the internship (legitimate interest and legal obligation) and not to pass them on to any third party without the prior explicit consent of AIESEC.
15.2. In the case of the involvement of a third party, the Organisation is responsible for ensuring the protection of personal data.
15.3. The Contracting Parties agree to undertake all relevant data protection provisions by AIESEC, in particular, those regarding any type of personal data processing.
15.4. The Organisation agrees that all of the Organisation's information provided in the Job Description can be forwarded to the potential candidates and other AIESEC suborganizations in the country and overseas for the purpose of finding a suitable candidate.
15.5. The Organisation agrees to give back or delete all of the personal data as requested by the end of this contract. All of the clauses relative to Data Protection will remain valid even after the end of the contract.

16. GENERAL PROVISIONS

16.1. Entire Agreement: This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior written agreements, understandings and negotiations, both written and oral, between the Parties with respect to the subject matter of this Agreement. No representation, inducement, promise, understanding, condition, warranty or indemnity not set forth herein has been made or relied upon by any Party hereto.

16.2 Additional Documentation: In connection with this Agreement, as well as all transactions contemplated by this Agreement, each Party agrees to execute and deliver such additional documents and to perform such additional actions as may be necessary, appropriate or reasonably requested to carry out or evidence the transactions contemplated hereby.

16.3. Governing Language and Law: The language to be used in connection with this Agreement shall in all cases be the English Language. This Agreement shall be governed by and construed in accordance with the laws of India and the courts of Mumbai shall have exclusive jurisdiction.

16.4. Assignment: No right or obligation under this Agreement may be assigned or transferred by the Organisation or by operation of law or otherwise without the prior

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written consent of AIESEC except as otherwise expressly permitted under this Agreement.

16.5. Waiver: The failure of either Party to enforce at any time the provisions hereof shall not be construed to be a waiver of such provisions or a waiver of such duty or obligation; nor shall it be construed as estopping such party from taking any action or exercising any remedy permitted in this agreement or under the law upon the subsequent occurrence of any similar or identical failure or the breach, or upon the failure of the other party to subsequently cure such breach.

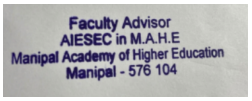
16.6. Severability: Should any provision of this Agreement be determined to be unenforceable or invalid, or any transaction contemplated hereby determined to be unlawful by any court of law, arbitrator or competent government body for any reason, all other provisions shall continue (except if this Agreement stands terminated) in full force and effect. In the event of any such determination results in a material change in the rights and obligations of either party, the party adversely affected shall have the option to terminate this Agreement by 15 days' written notice after the date of such determination.

16.7. Waiver and Amendment: Any provision of this Agreement may be amended or waived if, and only if such amendment or waiver is in writing and signed, in the case of an amendment by each Party, or in the case of a waiver, by the Party against whom the waiver is to be effective.

16.8. Expenses: Except as otherwise provided in this Agreement, each Party hereto shall bear its own expenses relating to this Agreement and the performance thereof.

IN WITNESS WHEREOF, the Parties hereto have executed this Agreement as of the day and year set forth above.

Organization Name:	Manipal Academy of Higher Education
AIESEC Local Office Name:	AIESEC in M.A.H.E.

Organization representative Name: Dr. Vivek Pandi **Designation : Faculty Advisor, International Relations MAHE Manipal** **Organization Name: Manipal Institute of Technology**	Signature along with Organization Seal  
AIESEC representative Name: Manini Sharma **Designation: Local Committee President** **AIESEC local office name: AIESEC in M.A.H.E.**	Signature along with AIESEC Seal 